

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

J. ALBERTO DONA DBA PACIFIC TRADING COMPANY INT'L,
Claimant

DOCKET NO. 2043(I)

v.

MEDITERRANEAN SHIPPING COMPANY (USA) INC.,
Respondent.

Served: April 1, 2026

ORDER OF: Jamie L. MENDELSON, *Small Claims Officer.*

INITIAL DECISION APPROVING CONFIDENTIAL SETTLEMENT AND DISMISSING PROCEEDING¹

On January 9, 2026, the Secretary of the Federal Maritime Commission (“Commission”) issued a notice that Claimant, J. Alberto Dona dba Pacific Trading Company Int’l, filed a small claim for informal adjudication (“Claim”) against Respondent, Mediterranean Shipping Company (USA) Inc. On February 23, 2026, Claimant and Respondent (the “parties”) submitted a Notice of Dismissal with Prejudice, jointly providing notice that the parties entered into a confidential settlement agreement pursuant to which the Claim has been resolved. On March 4, 2026, I issued an Order to Provide Settlement Agreement for Approval. The parties submitted the Confidential Settlement Agreement by email dated March 13, 2026. In the email, the parties stated: “The settlement is confidential, and the parties request that it be treated accordingly.” On March 24, 2026, I issued an Order to Show Cause for Confidential Treatment of Settlement Agreement (“Order to Show Cause”), requiring the parties to show good cause for confidential treatment. Claimant responded by email dated March 24, 2026, with a message stating that confidential treatment of the settlement agreement is not “needed on our side.” On March 31, 2026, Respondent submitted a Response to the Order to Show Cause asserting that good cause exists for confidential treatment.

The Commission’s consistent policy is to “encourage settlements and engage in every presumption which favors a finding that they are fair, correct, and valid.” *Access One Transport, Inc., v. CMA CGM S.A.*, Docket No. 24-18, 2024 WL 5119296 at *1 (ALJ Dec. 10, 2024) (quoting *Inlet Fish Producers, Inv. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ May 9, 2002) and *Old Ben Coal Co. v. Sea-Land Serv., Inc.*, 21 F.M.C. 506, 512, 18 S.R.R. 1085, 1091 (ALJ Nov. 29, 1978)). Although this policy is generally followed, “the Commission does not merely rubber stamp any proffered settlement, no matter how anxious the parties may be to

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

terminate their litigation.” *Access One*, 2024 WL 5119296 at * 2 (quoting *Old Ben Coal*, 18 S.R.R. at 1093). A settlement agreement that does not violate any law or policy and is free of fraud, duress, undue influence, mistake, or other defect that might make it unapprovable would likely be approved. *Id.* “[I]f it is the considered judgment of the parties that whatever benefits might result from the vindication of their positions would be outweighed by the costs of continued litigation and if the settlement otherwise complies with law the Commission authorizes the settlement.” *Delhi Petroleum Pty. Ltd. v. U.S. Atlantic & Gulf/Australia - New Zealand Conf. and Columbus Line, Inc.*, 24 S.R.R. 1129, 1134, 1988 WL 340657 at *7 (ALJ Aug. 12, 1988).

The signed Confidential Settlement Agreement does not show any indicia of fraud, duress, undue influence, or mistake. I find no indication that the Confidential Settlement Agreement violates any law or policy, or contains any other defect, which would render it unapprovable. The terms appear to be fair, reasonable, and adequate and avoid the need for costly and uncertain litigation. Accordingly, the Confidential Settlement agreement is approved, and this proceeding is dismissed with prejudice.

Respondent also requests that the Confidential Settlement Agreement be afforded confidential treatment. With respect to confidential treatment, the Commission looks for “good cause demonstrating that the information is a trade secret or other confidential research, development of commercial information.” *Genesis Resource Enterprise Inc. v. Maersk Line, Ltd.*, Dkt. No. 2014(I), 2024 WL 5054939, at *1 (FMC Dec. 4, 2024). Here, Respondent states the agreement contains sensitive commercial information that justifies confidential treatment, to include the amount to be paid to settle the Claim. Response to Order to Show Cause at p. 3. Respondent also argues that confidential treatment furthers the Commission’s policy of encouraging settlements. *Id.* at 4. I find that Respondent has established good cause for confidential treatment.

It is therefore

ORDERED that the Confidential Settlement Agreement is **APPROVED**. It is

FURTHER ORDERED that the request for confidential treatment is **GRANTED**. It is

FURTHER ORDERED that this proceeding be **DISMISSED WITH PREJUDICE**.

SO ORDERED

Jamie L.
Mendelson -S  Digitally signed by
Jamie L. Mendelson -S

Jamie L. Mendelson
Small Claims Officer